CRIMINAL LAW

Friday, Oct. 2
(Lecture 10)

Hello! This slide will help you prepare for today's class.

- **We will start today by discussing the principle of contemporaneity. Pease be prepared to discuss *R. v. Williams*.**
- **Next, I will say a few words about how we prove *mens rea*.**
- **Finally, we will start to learn about specific mental states!**
- **We will begin with 'intent' and 'ulterior purpose.' Please be prepared to discuss *R. v. Buzzanga and Durocher* and *Hibbert*.**
- **If we have time, we will discuss recklessness, then knowledge and wilful blindness.**

CRIMINAL LAW

Friday, Oct 2
(Lecture 10)

Upcoming DF Session!

- **Monday, October 5, 12:30-2:00 (IKB 2002)**
- **Topics:**
  - **Strategies for weekly reading & note-taking**
  - **Developing a "timeline" for studying/exam-prep**
- *Note: this session is not recorded, but materials will be posted to eClass after the session*

The Elements of the Offence

The "ingredients" for a crime:

Actus Reus

+

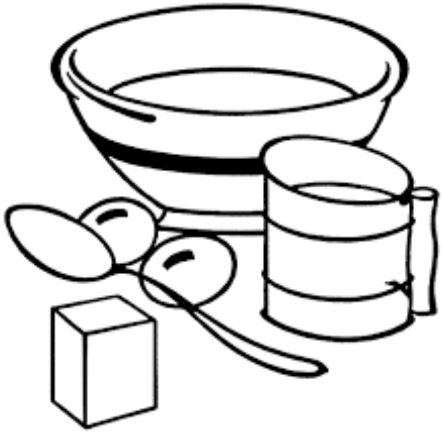
Mens Rea



Mens Rea

- **The "guilty mind" or "fault" requirement.**

- The mental component of the crime.



Mens Rea

Thespian is upset he was not cast in the play. He offers Director a cookie that contains ground nuts. Thespian knows Director has a fatal nut allergy. He offers her the cookie with the intent to kill her.

Thespian is upset he was not cast in the play. He offers Director a cookie that contains ground nuts. Thespian has no idea Director has a fatal nut allergy. He offers the cookie in hopes of ingratiating himself to her before she casts the next production.

Mens Rea

Actus non facit reum nisi mens sit rea

"An act does not become guilty unless the mind is guilty."

Objectives for Week 5 (continued)

35. **Build your "statutory interpretation toolkit":**
    - **The 'symmetry' rule of thumb**
36. Explain and apply the concept of contemporaneity.
37. Explain how *mens rea* is proved in criminal cases.
38. Explain and apply the concept of intent, including by distinguishing it from motive, and from ulterior purpose.
39. Explain and apply the concept of (ulterior) purpose, including by distinguishing it from motive, and from intent.

Symmetry

"The fault element should generally extend to all the elements of the prohibited act."

(Kent Roach, *Criminal Law*, 5th ed.)



Symmetry (*introducing the concept*) (1/2)

Actus Reus	*Mens Rea*
Conduct	**[Mental state]**
Circumstance	**[Mental state]**
Consequence	**[Mental state]**

Symmetry (*introducing the concept*) (2/2)

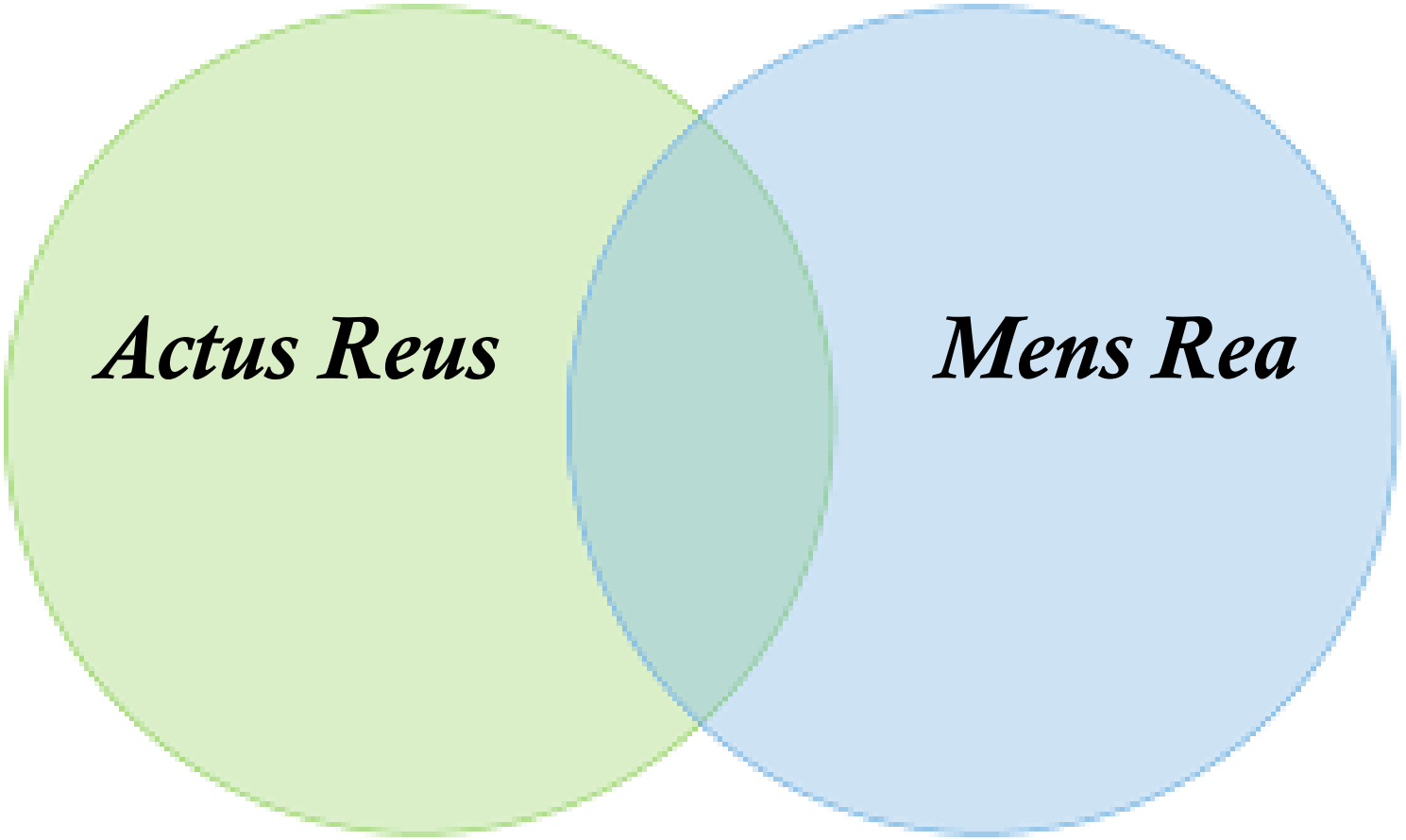
Actus Reus	*Mens Rea*
Conduct	**Intent *or* Recklessness**
Circumstance	**Knowledge/Wilful Blindness**
Consequence	**Intent *or* Recklessness****
	Ulterior Purpose

***** NB – this one is particularly complicated! Stay tuned for our unit on predicate offences***

Objectives for Week 6

35. Build your "statutory interpretation toolkit":
    - The 'symmetry' rule of thumb
36. **Explain and apply the concept of contemporaneity.**
37. Explain how *mens rea* is proved in criminal cases.
38. Explain and apply the concept of intent, including by distinguishing it from motive, and from ulterior purpose.
39. Explain and apply the concept of (ulterior) purpose, including by distinguishing it from motive, and from intent.

Contemporaneity



Why contemporaneity?

Thespian is upset he was not cast in the play. He offers Director a cookie that contains ground nuts. Thespian has no idea Director has a fatal nut allergy. He offers the cookie in hopes of ingratiating himself to her before she casts the next production.

Thespian is surprised with Director has an allergic reaction after taking a bit of the cookie, but he later concludes she "got what she deserved" and feels glad about her reaction.

Intuition check: ***What if Director had purchased the cookie (Thespian had nothing to do with her eating it), but after learning about Director's reaction, Thespian felt glad and concluded she "got what she deserved"?***

R. v. Williams

265. (1) A person commits an assault when

(a) without the consent of another person, he applies force intentionally to that other person, directly or indirectly […]

(3) For the purposes of this section, no consent is obtained where the complainant submits or does not resist by reason of […] (c) fraud

268. (1) Every one commits an aggravated assault who wounds, maims, disfigures or endangers the life of the complainant.

R. v. Williams

- **June 1991 – relationship begins**
- **August 1991 – Complainant may have been infected**
- **November 15, 1991 – Accused learns HIV+**
- **November 1992 – relationship ends**
- **April 15, 1994 – Complainant learns HIV+**

R. v. Williams

- June 1991 – relationship begins
- August 1991 – Complainant may have been infected
- November 15, 1991 – Accused learns HIV+ [*MR*]
- November 1992 – relationship ends
- April 15, 1994 – Complainant learns HIV+

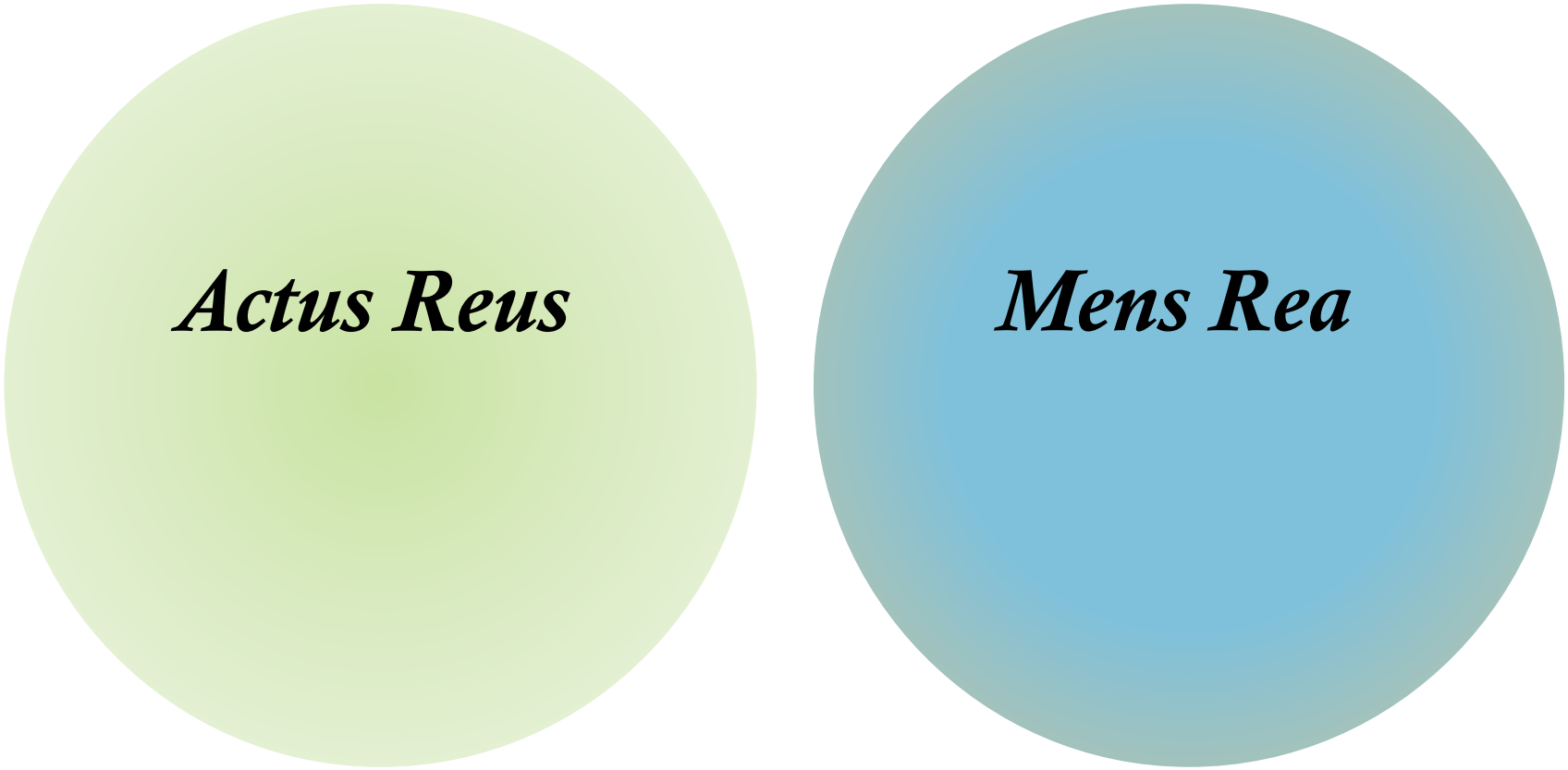
R. v. Williams

"To constitute a crime 'at some point the *actus reus* and the *mens rea* or intent must coincide.

[…] Here, however, before November 15, 1991, there was an endangerment but no [*mens rea*]; after November 15, 1991, there was [*mens rea*] but at the very least a reasonable doubt about the existence of any endangerment. Therein lies the essence of the Crown's problem in this case."

(para. 35)

No Contemporaneity



Objectives for Week 5 (continued)

35. Build your "statutory interpretation toolkit":
    - The 'symmetry' rule of thumb
36. Explain and apply the concept of contemporaneity.
37. **Explain how *mens rea* is proved in criminal cases.**
38. Explain and apply the concept of intent, including by distinguishing it from motive, and from ulterior purpose.
39. Explain and apply the concept of (ulterior) purpose, including by distinguishing it from motive, and from intent.

Proving *Mens Rea*





Proving *Mens Rea*

- **Accused's intention is a fact like any other. It must be proved on the evidence as a whole.**
- **The Accused's own testimony is relevant, but it is neither necessary nor decisive.**
- **Oftentimes, the accused's mental state can be inferred from action itself. We can generally *infer* that a person intended the natural consequences of their actions. ["common sense inference" – *Walle*]**
- **We should not, however, *presume* that a person intended the natural consequences of their actions.**

Objectives for Week 5 (continued)

35. Build your "statutory interpretation toolkit":
    - The 'symmetry' rule of thumb
36. Explain and apply the concept of contemporaneity.
37. Explain how *mens rea* is proved in criminal cases.
38. **Explain and apply the concept of intent, including by distinguishing it from motive, and from ulterior purpose.**
39. **Explain and apply the concept of (ulterior) purpose, including by distinguishing it from motive, and from intent.**

Intent

- **No general definition in the *Criminal Code*; no authoritative definition from the courts.**
- **Construed "in a loose colloquial sense of actual desire, end, purpose, aim, objective or design…" (Don Stuart)**
- ***NOT* synonymous with motive**
  - **Contrast "… 'intent', i.e. the exercise of a free will to use particular means to produce a particular result […] with 'motive', i.e. that which precedes and induces the exercise of the will. The mental element of a crime ordinarily involves no reference to motive." (*R. v. Lewis* [1979] 2 S.C.R. 821)**

Intent vs. Motive

- **Maury kills his mother because he hopes to collect his inheritance.**
- **Raskolnikov kills Pawnbroker because he feels he is both entitled and predestined to do so, and he thinks the world would be improved by Pawnbroker's absence.**
- **Mobster kills Bookie because Bookie was cheating him and Mobster wants to send a message to other debtors.**
- **Hitman kills a bookie because Mobster will pay him to do so and he wants to earn money.**

Intent vs. Motive

INTENT: **In general terms, what act/omission do they mean to perform? What consequence do they mean to bring about?**	**MOTIVE:** **More particularly, why do they personally want to perform that act/omission, or bring about that consequence?**
Maury wants to kill his mother; he wants to bring about his mother's death	He wants to collect his inheritance
Mobster wants to kill Bookie; he wants to bring about Bookie's death	He wants to send a message to debtors
Hitman wants to kill Bookie; he wants to bring about Bookie's death	He wants to earn money

Mens Rea

Thespian is upset he was not cast in the play. He offers Director a cookie that contains ground nuts. Thespian knows Director has a fatal nut allergy. He offers her the cookie with the intent to kill her.

R. v. Buzzanga and Durocher

S. 319 (2) Every one who, by communicating statements, other than in private conversation, wilfully promotes hatred against any identifiable group is guilty of [a hybrid offence]

Objectives for Week 5 (continued)

35. Build your "statutory interpretation toolkit":
    - The 'symmetry' rule of thumb
36. Explain and apply the concept of contemporaneity.
37. Explain how *mens rea* is proved in criminal cases.
38. **Explain and apply the concept of intent, including by distinguishing it from motive, and from ulterior purpose.**
39. **Explain and apply the concept of (ulterior) purpose, including by distinguishing it from motive, and from intent.**

Ulterior Purpose – s. 78.1(4)

78.1 (2) Every one who

(b) destroys or causes damage to a ship or its cargo or to a fixed platform […]

(4) Every one who threatens to commit an offence under paragraph (2)(a), (b) or (c) in order to compel a person to do or refrain from doing any act, where the threat is likely to endanger the safe navigation of a ship or the safety of a fixed platform, is guilty of an indictable offence […]

Ulterior Purpose v. Motive

Mo is on board a luxury dinner cruise, which loops around the harbour at sunset. Before dessert is served, he asks the captain to return to shore early. The captain refuses, and an argument ensues. Mo picks up a chair and threatens to start throwing furniture overboard if the captain doesn't turn the boat around immediately.

Mo's purpose, in making the threat, is to compel the captain to return to shore early…

Intent vs. Ulterior Purpose vs. Motive

INTENT: In general terms, what act/omission do they mean to perform? What consequence do they mean to bring about?	**ULTERIOR PURPOSE:** In general terms, what is their purpose in performing the act/omission, or in bringing about that consequence?	**MOTIVE:** More particularly, why do they have that purpose? Why do they personally want to perform that act/omission, or bring about that consequence?
Mo intentionally threatens to damage the ship	Mo's purpose is to compel the captain to return early	Mo is feeling sea-sick and wants to disembark ASAP
Mo intentionally threatens to damage the ship	Mo's purpose is to compel the captain to return early	Mo was planning to propose and forgot the ring in his glove compartment
Mo intentionally threatens to damage the ship	Mo's purpose is to compel the captain to return early	Mo received an urgent call from the babysitter; his child has a fever

Ulterior Purpose - s. 270

270 (1) Every one commits an offence who […]

(b) assaults a person with intent to resist or prevent the lawful arrest or detention of himself or another person; or

R v Hibbert – s. 21(1)

21 (1) Every one is a party to an offence who …

(b) does or omits to do anything for the purpose of aiding any person to commit it

R v Hibbert
(quoting Mewett & Manning)

"If a man is approached by a friend who tells him that he is going to rob a bank and would like to use his car as the getaway vehicle for which he will pay him $100, when that person is . . . charged under s. 21 for doing something for the purpose of aiding his friend to commit the offence, can he say 'My purpose was not to aid the robbery but to make $100'? His argument would be that while he knew that he was helping the robbery, his desire was to obtain $100 and he did not care one way or the other whether the robbery was successful or not."

Intent vs. Ulterior Purpose vs. Motive

INTENT: **In general terms, what act/omission do they mean to perform? What consequence do they mean to bring about?**	**ULTERIOR PURPOSE:** **In general terms, what is their purpose in performing the act/omission, or in bringing about that consequence?**	**MOTIVE:** **More particularly, why do they have that purpose? Why do they personally want to perform that act/omission, or bring about that consequence?**
[Aider gives Robber access to car]	**Aider's purpose is to aid Robber with committing robbery**	**Aider's motive is to obtain $100**

R v Hibbert

"It must be emphasized, however, that the word 'purpose' is employed in many different sections of the *Criminal Code*, in a number of distinct contexts. My conclusions in the present case on the proper interpretation of the word 'purpose' as it is employed in s. 21(1)(*b*) of the *Code* are thus restricted to this particular subsection. It may well be that in the context of some other statutory provision a different interpretation of the term will prove to be the most appropriate."

Objectives for Week 5 (continued)

35. Build your "statutory interpretation toolkit":
    - The 'symmetry' rule of thumb
36. Explain and apply the concept of contemporaneity.
37. Explain how *mens rea* is proved in criminal cases.
38. **Explain and apply the concept of intent, including by distinguishing it from motive, and from ulterior purpose.**
39. **Explain and apply the concept of (ulterior) purpose, including by distinguishing it from motive, and from intent.**